

NAPCS Unionization Research — State — Charter School Overview

Ohio — NLRB (Region 8 / Region 9) Jurisdiction — May 2026

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Section 1: State Overview

State	Ohio
Labor Board	NLRB (Region 8 / Region 9) — National Labor Relations Board — Region 8 (Cleveland) and Region 9 (Cincinnati/Columbus)
Governing Law	National Labor Relations Act (NLRA). Ohio charter schools ("community schools" per ORC Chapter 3314) are classified as privately incorporated nonprofits — private employers under the NLRA. SERB (State Employment Relations Board, ORC Chapter 4117) does NOT apply. Settled by NLRB precedent: Menlo Park Academy (08-RC-286190, 2022), KIPP Columbus (09-CA-310589, 2022–2024), and a decade of prior Ohio charter elections all confirming NLRB jurisdiction.
Federal NLRB Jurisdiction	YES — NLRB has exclusive jurisdiction over all 32 Ohio NAPCS charter schools. SERB jurisdiction has been argued and rejected in every Ohio charter labor case. The NLRB's ruling at Menlo Park Academy stated the school "was not created directly by the state and is not a department or administrative arm of government." This is the operative standard for all Ohio community schools.
Right-to-Work	NOT a Right-to-Work State — Ohio has no right-to-work statute for private-sector employees. NLRA preempts state right-to-work law for private employers, and Ohio has enacted no such statute. Ohio public employees retain full collective bargaining rights under ORC Chapter 4117 (SB 5, enacted 2011, was repealed by voter referendum November 2011). (No right-to-work statute applies to Ohio charter schools, which are private employers under the NLRA. Union security provisions (agency fee, union shop) are available in CBA negotiations.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB jurisdiction = secret ballot election required. No card-check certification path available. Employer can demand election at 30%+ showing.
Registry Sweep	COMPLETE — April 2026 (Registry v7 — SERB scan entry point; all confirmed schools under NLRB) — 323 charter schools searched
Research Window	March–April 2026 (initial); May 2026 (reconciliation session)

Section 2: Charter School Landscape

Total charter schools in Ohio: 323 (Charter School Registry v50 (NCES/ELSI 2024-25; 323 open OH charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Ohio	27	8.4%	13 independently organized (CONFIRMED) + 14 structurally covered (DEPENDENT). NLRB jurisdiction — Ohio charters are private employers under federal law. SERB has no charter school jurisdiction.
Independently Organized (CONFIRMED)	13	4.0%	9 OFT/AFT-affiliated: 7 Cleveland ACTS schools (OFT Local 6570: NE Ohio College Prep, Cleveland College Prep, Univ. of Cleveland Prep, Stepstone Academy, Summit Parma, Summit Lorain, Menlo Park Academy) + KIPP

			Columbus ACTS + ACPA United (certified December 5, 2025, 44-1 vote, case 09-RC-375102). 2 OEA/NEA-affiliated: Summit Academy Youngstown (C3905038) + Summit Academy Secondary School-Youngstown (C3904066) — both confirmed independently organized May 22, 2026; NLRB R8 FOIA pending for cert case/date. 2 ES-approved discoveries (OFT/AFT): Summit Academy Painesville (NAPCS-ADD-OH-001) + Summit Academy Secondary Lorain (NAPCS-ADD-OH-002) — approved May 31, 2026.
Structurally Covered — District CBA Carryover (DEPENDENT)	14	4.3%	Conversion community schools covered by ORC §3314.10(A)(3) — employees remain in authorizing district CBA by statute. No independent NLRB or SERB certification event for these schools. SERB Clearinghouse is the research source; district CBA governs. Includes: Coshocton Opportunity School (OEA), Eagle Learning Center (OFT/AFT), Fairborn Digital Academy (OEA), Findlay Digital Academy (OEA), Foxfire High School (OEA), Foxfire Intermediate (OEA), Par Excellence Academy (OEA), Quaker Digital Academy (OEA), Rittman Academy (OEA), Schnee Learning Center (OEA), Tomorrow Center Digital (OEA), Utica Shale Academy (OEA), Zanesville Community High School (OEA), Franklin Local Community School (OEA). All 14 confirmed via statutory coverage; Zanesville and Franklin Local confirmed Session B May 24, 2026.
No Labor Board Records Found	296	91.6%	No NLRB ADS records found for remaining 296 OH charter schools. Full 323-school open registry confirmed (April 2026). Includes all 23 NAPCS-listed unverified schools.
Total Charter Schools in Ohio	323	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 323 open OH charter schools as of May 2026).

Charter School Enrollment

Total Charter Enrollment	123,080 students — 7.4% of state K–12 enrollment (1,665,566 total K–12 students)
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Students in CMO/EMO-Affiliated Charter Schools	21,247 students in network-affiliated schools — 17.3% of total charter enrollment
Students in Organized Charter Schools	6,483 students (5.3% of charter enrollment) — 2,288 in CMO/EMO-affiliated schools (1.9%); 4,195 in independently organized schools (3.4%)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Imagine Schools	EMO	3	3	—	455
Summit Academy Management	CMO	20	20	4	1,710
Concept Schools	CMO	16	3	—	6,447
Constellation Schools	CMO	15	15	—	3,755
Buckeye Community Schools	CMO	5	—	—	2,002
Focus Learning Academy	CMO	4	—	—	1,574
Village Preparatory Schools	CMO	3	—	—	1,767
Zenith Academy	CMO	3	—	—	748
Citizens Academy	CMO	1	—	—	667
HOPE Academies	CMO	1	—	—	177
KIPP Foundation	CMO	1	1	1	1,945
TOTAL — All CMO/EMO Schools in Ohio		72		5	21,247
of which organized (1.9% of charter enrollment)				5	2,288

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Ohio. Organized network schools: 5 organized — 2,288 students in organized network schools (1.9% of total charter enrollment).

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 EMO (for-profit), 10 CMO (nonprofit). Approximately 251 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

National Labor Relations Act (NLRA). Ohio charter schools ("community schools" per ORC Chapter 3314) are classified as privately incorporated nonprofits — private employers under the NLRA. SERB (State Employment Relations Board, ORC Chapter 4117) does NOT apply. Settled by NLRB precedent: Menlo Park Academy (08-RC-286190, 2022), KIPP Columbus (09-CA-310589, 2022–2024), and a decade of prior Ohio charter elections all confirming NLRB jurisdiction. Ohio is not a right-to-work state (Ohio has no right-to-work statute for private-sector employees. NLRA preempts state right-to-work law for private employers, and Ohio has enacted no such statute. Ohio public employees retain full collective bargaining rights under ORC Chapter 4117 (SB 5, enacted 2011, was repealed by voter referendum November 2011).). Charter schools in Ohio are subject to NLRB jurisdiction as private employers (NLRB (Region 8 / Region 9)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Ohio operates 323 open-enrollment charter schools, enrolling approximately 123,080 students. 11 charter management organizations and education management organizations operate in Ohio, including 1 for-profit EMO. The largest networks by campus count are Summit Academy Management (20 campuses in state), Concept Schools (16 campuses in state), Constellation Schools (15 campuses in state). Approximately 251 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Ohio charter union organizing has received consistent press coverage concentrated around election events and the 2019 Summit Academy Parma strike. The Cleveland Plain Dealer and cleveland.com have covered Cleveland ACTS certifications most thoroughly. The Columbus Dispatch has covered KIPP Columbus and ACPA. OFT press releases are the most complete single source for certification announcements. The KIPP Columbus ULP findings received national education press attention (Chalkbeat, Education Week). ACPA's 44-1 election result has not received major press coverage as of May 2026 — consistent with the pattern that overwhelming union victories receive less press attention than contested elections.

Stakeholder Communications

OFT (oft-aft.org) is the authoritative source for Ohio charter union communications. OFT issued a press release on November 19, 2025 announcing ACPA's card filing. Cleveland ACTS issues periodic communications through OFT channels. The OFT "locals" page lists all affiliated locals including Cleveland ACTS (Local 6570) and KIPP Columbus ACTS. AFT national communications have mentioned KIPP Columbus as a significant KIPP organizing precedent. Employer responses to Ohio charter organizing have ranged from neutral (early ACCEL certifications) to actively resistant (KIPP Columbus, where NLRB found ULP violations in August 2024). Summit Academy Parma's management did not recognize voluntarily but did not contest the election result — the strike occurred over first-contract terms, not recognition. ACPA's management has not issued public statements about the organizing campaign or election result as of May 2026.

Authorizer & State Agency Positions

Ohio charter authorizers (ESCs, universities, school districts, and the Ohio Department of Education and Workforce) have not issued public statements about charter school unionization. Authorizer responses to union activity are not documented in available sources.

Legislative Context

Ohio's charter school law (ORC Chapter 3314) does not address employee unionization. The NLRB's exclusive jurisdiction over Ohio charter employees has not been legislatively modified. Ohio is not a right-to-work state for private employers (NLRA preempts state right-to-work for private sector). Ohio has not enacted any legislation that would shift charter school employees to SERB jurisdiction.

Section 6: Contract & CBA Access Registry

NLRB (Region 8 / Region 9) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Summit Academy Secondary School-Parma	Cleveland ACTS / OFT Local 6570	Active Multiple cycles — first CBA ratified March 2019 (post-strike)	N/A
Northeast Ohio College Preparatory School	Cleveland ACTS / OFT Local 6570	Active First ratified ~2017-18; current cycle unknown	N/A
Cleveland College Preparatory Academy	Cleveland ACTS / OFT Local 6570	Active First ratified ~2017-18; current cycle unknown	N/A
University of Cleveland Preparatory School	Cleveland ACTS / OFT Local 6570	Active First ratified ~2017-18; current cycle unknown	N/A
Stepstone Academy	Cleveland ACTS / OFT Local 6570	Active First ratified ~2019-20; current cycle unknown	N/A
Summit Academy Community School-Lorain	OFT	Active First ratified ~2022-23 (post-cert Jan 2022); current cycle unknown	N/A
Menlo Park Academy	Cleveland ACTS / OFT Local 6570	Active First ratified ~2022-23 (post-cert April 2022); current cycle unknown	N/A
KIPP Columbus	KIPP Columbus ACTS / OFT	Pre-first-contract — in negotiation Certified May 5, 2023; first contract not yet ratified as of May 2026	N/A
Arts and College Preparatory Academy (ACPA)	ACPA United / OFT	Pre-first-contract — newly certified Certified December 5, 2025; bargaining not yet commenced	N/A
Coshocton Opportunity School	Coshocton City Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Eagle Learning Center	Oregon City Federation of Teachers (OFT/AFT)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Fairborn Digital Academy	Fairborn Education Association (OEA/NEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Findlay Digital Academy	Findlay Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A

Foxfire High School	Maysville Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Foxfire Intermediate School	Maysville Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Par Excellence Academy	Newark Teachers Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Quaker Digital Academy	New Philadelphia Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Rittman Academy	Rittman Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Schnee Learning Center	Cuyahoga Falls Education Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Tomorrow Center Digital	Mount Gilead Teachers Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A
Utica Shale Academy of Ohio	Jefferson County Teachers Association (OEA)	ACTIVE — district CBA coverage via ORC §3314.10(A)(3) Ongoing — district CBA cycle	N/A